

26SMCV00515 26SMCV00515

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Case Number: 26SMCV00515 Hearing Date: August 6, 2026 Dept: M

CASE NAME: Scapa, v. MDRCA

Properties LLC, et al.

CASE NO.: 26SMCV00515

MOTION: Motion

for Summary Judgment

HEARING DATE: 8/6/2026

Legal

Standard

A party may move for summary judgment in any action or proceeding if it is contended the action has no merit or that there is no defense to the action or proceeding. (CCP, § 437c(a).) "The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants

either owed or did not owe a duty to the plaintiff or plaintiffs.” (CCP, § 437c(f)(1).) If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1544.) “[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty pursuant to” subdivision (t). (CCP, § 437c(t).)

To prevail, the evidence submitted must show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (CCP, § 437c(c).) The motion cannot succeed unless the evidence leaves no room for conflicting inferences as to material facts; the court has no power to weigh one inference against another or against other evidence. (*Murillo v. Rite Stuff Food Inc.* (1998) 65 Cal.App.4th 833, 841.) In determining whether the facts give rise to a triable issue of material fact, “[a]ll doubts as to whether any material, triable, issues of fact exist are to be resolved in favor of the party opposing summary judgment...” (*Gold v. Weissman* (2004) 114 Cal.App.4th 1195, 1198-99.) “In other words, the facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences there from must be accepted as true.” (*Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 179.) However, if adjudication is otherwise proper the motion “may not be denied on grounds of credibility,” except when a material fact is the witness’s state of mind and “that fact is sought to be established solely by the [witness’s] affirmation thereof.” (CCP, § 437c(e).)

Once the moving party has met their burden, the burden shifts to the opposing party “to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (CCP § 437c(p)(1).) “[T]here is no obligation on the opposing party... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element... necessary to sustain a judgment in his favor.” (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.)

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“The pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to

delimit the scope of the issues and to frame the outer measure of materiality in a summary judgment proceeding.” (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493, quotations and citations omitted.) “Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Ibid.)

Analysis

Plaintiff Jeffry Scapa moves for summary judgment against Defendant MDRCA Properties, LLC and All Unknown Occupants, Tenants, and Subtenants.

Plaintiff’s request for judicial notice is GRANTED. (Evid. Code § 452(c), (d).)

Plaintiff demonstrates his prima facie case for unlawful detainer. In the unlawful detainer context, “[a] motion for summary judgment may be made at any time after the answer is filed upon giving five days notice.” (CCP § 1170.7.) “Any opposition to the motion and any reply to an opposition may be made orally at the time of the hearing or in writing” (CRC rule 3.1351(b).) “If a party seeks to have a written opposition considered in advance of the hearing, the written opposition must be filed and served on or before the court day before the hearing.” (CRC Rule 3.1351(c).) “Service must be made by personal delivery, electronic service, fax transmission, express mail, or other means consistent with Code of Civil Procedure sections 1010, 1010.6, 1011, 1012, and 1013, and reasonable calculated to ensure delivery to the other party or parties no later than the close of business on the court day before the hearing.” (Id.) “The court, in its discretion, may consider written opposition filed later.” (Id.) “The procedures governing a motion for summary judgment in an unlawful detainer action are streamlined (e.g., separate statements are not required under section 437c, subdivision (s) of the Code of Civil Procedure), but such a motion shall be granted or denied on the same basis as a motion under Section 437c” (Borden v. Stiles (2023) 92 Cal.App.5th 337, 344-345.)

Generally, the basic elements of unlawful detainer are (1) the tenant is in possession of the premises; (2) that possession is without permission; (3) the tenant is in default; (4) the tenant

has been properly served with a written three-day notice; and (5) the default continues after the three-day notice period has elapsed. (*Kruger v. Reyes* (2014) 232 Cal.App.4th Supp. 10, 16.)

In the foreclosure context, “a person who holds over and continues in possession of . . . real property after a three-day written notice to quit the property has been served upon the person, or if there is a subtenant in actual occupation of the premises, also upon such subtenant, as prescribed in Section 1162, may be removed therefrom.” (CCP § 1161a(b).) Such removal may occur “[w]here the property has been sold in accordance with Section 2924 of the Civil Code, under a power of sale contained in a deed of trust executed by such person, or a person under whom such person claims, and the title under the sale has been duly perfected.” (CCP § 1161a(b)(3).) “Delivery of the deed by the trustee makes conclusive the presumption that the sale was properly conducted . . . [under Civil Code section 2924] and recordation of the deed perfects the title.” (*Matson v. S.B.S. Trust Deed Network* (2020) 46 Cal.App.5th 33, 41.)

Under Civil Code section 2924, “[t]he trustee starts the nonjudicial foreclosure process by recording a notice of default and election to sell.” (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 927.) “After a three-month waiting period, and at least twenty days before the scheduled sale, the trustee may publish, post, and record a notice of sale.” (*Ibid.*) “If the sale is not postponed and the borrower does not exercise his or her rights of reinstatement or redemption, the property is sold at auction to the highest bidder.” (*Ibid.*)

“[T]he notices required by Sections 1161 and 1161a may be served by any of the following methods: (1) By delivering a copy to the tenant personally . . . (2) If he or she is absent from his or her place of residence, and from his or her usual place of business, by leaving a copy with some person of suitable age and discretion at either place, and sending a copy through the mail addressed to the tenant at his or her place of residence . . . [or] (3) If such place of residence and business cannot be ascertained, or a person of suitable age or discretion there can not be found, then by affixing a copy in a conspicuous place on the property, and also by delivering a copy to a person there residing, if such person can be found; and also sending a copy through the mail addressed to the tenant at the place where the property is situated.” (CCP § 1162(a)(1)-(3).)

Plaintiff purchased the Subject Property, 5005 Ocean Front Walk, Marina Del Rey, CA 90292, at a nonjudicial foreclosure sale. (UMF 9, 12; Civ. Code § 2924h(c).) Plaintiff foreclosed on the Subject Property for a credit bid of \$1,573,330.00. (UMF 9.) Plaintiff shows that the foreclosure sale was held in accordance with Civil Code section 2924 through the recording of a substitution of trustee, notice of default, notice of trustee's sale, and trustee's deed upon sale ("TDUS"). (UMF 1-4, 9, 12.) Plaintiff perfected title to the Subject Property by recording the TDUS. (UMF 12.) Plaintiff thus presents prima facie evidence of a regularly conducted and noticed foreclosure sale under section 2924(c).

Plaintiff notes that he received relief from the stay caused by MDRCA's bankruptcy. On December 6, 2023, MDRCA filed for Chapter 7 Bankruptcy protection in the Central District of California. (UMF 5.) Plaintiff obtained orders for relief from the automatic stay to conduct the foreclosure of the Subject Property. (UMF 6-7.)

Plaintiff also expunged the lis pendens filed against the Subject Property. MDRCA recorded two lis pendens against the Subject Property stemming from other cases against Plaintiff. (UMF 10.) Plaintiff obtained orders expunging each lis pendens and those cases were dismissed. (UMF 11.) Plaintiff also expunged three other lis pendens from the Subject Property based on cases brought by parties related to MDRCA. (Id.)

Plaintiff served a Notice to Vacate upon Defendants. (UMF 13.) The attached proof of service shows that a copy of the notice was posted in a conspicuous place on the property, since there was no person of suitable age or discretion to be found at the property, and thereafter mailed a copy to said tenant(s) by depositing said copies in the United States Mail in a sealed envelope with postage fully prepaid, addressed to the tenant. (Scapa Decl., Ex. 2.) Plaintiff waited more than three days after the posting before filing this lawsuit. (UMF 14.)

Defendants refuse to turnover possession of the Subject Property. (UMF 15.)

Therefore, Plaintiff has met his prima facie burden. The burden shifts to Defendants to present a dispute of material fact at the hearing. In addition, Defendant must present tender to

avoid a foreclosure eviction. (MCA v. Universal Diversified (1972) 27 Cal.App.3d 170, 176-177.)

If Defendants fail to do so, the motion will be granted.